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Virginia Board of Education, Public Charter School Standing Committee, Tuesday, July 16, 2024

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- Official meeting video (VDOE, YouTube): https://www.youtube.com/watch?v=O5v0Ljr0jcU
- Board of Education meetings, agendas and minutes (VDOE): https://www.doe.virginia.gov/state-board-data-funding/virginia-board-of-education

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[00:13:14] Good morning. My name is Michelle Ashton, and I am the Chair of the Charter School Standing Committee. Welcome to our July meeting of the Standing Committee. I would like to call this meeting to order. Ms. McDaniel, will you please call a roll call of the Standing Committee members?

[00:13:34] Absolutely. Mr. Chris Bronlec. Present. Mr. Antoine Green. Present. Ms. Ebony Elite. Ms. Nina Reese. Present. And Madam Chair Michelle Ashton. Present. Thank you. Please join us in having a moment of silence, followed by the Pledge of Allegiance.

[00:14:10] Please join us in having a moment of silence, followed by the Pledge of Allegiance.

[00:14:27] you with this meeting members of the standing committee were provided with an agenda in advance of this meeting is there a motion to approve the agenda as presented second all favors signify by saying aye great now it's with tremendous pleasure that i would love to introduce the president of

[00:14:57] the Virginia Board of Education Ms. Grace Creasy for opening remarks. Good morning everyone. Thank you so much for being here today. It is with great pleasure and much excitement that you all are seated here and ready to begin your work for us. So what I would like to do first of all is just thank you for your willingness to serve the board in this capacity as national experts in charter schools. As you might know from following what we have been doing on the Board of Education on March

[00:15:37] the 28th this year, I, as the President of the Board of Education, reconstituted the Charter School Advisory Committee of the Board of Education, as we have several charter school applications in pipeline for your review and recommendation to the Board of Education here in the very near future. As many of you know this is not new information to you but we have not in the Commonwealth of Virginia had an application for a charter school reviewed by the charter school

[00:16:13] standing committee or by the Board of Education since 2016 and so as you will see during your meeting today being that those evaluation documents and criteria are from 2016 we have done quite a bit of enhancement of that process of the criteria for evaluation and then also of the application for charter school applicants to complete that are brought up to speed with those national norms and best practices in the charter school world we looked to a number of charter

[00:16:50] school experts across the country in addition to many of you that we sought your input on this process and how we could better create a process that most helped the applicant as the in their process here with your committee moving to the board and then most of all and most importantly to ensure that they are prepared um at the most at the very highest level for them to be heard at their local school division we just want to make sure that as this committee works it points

[00:17:28] out both the strengths and potential areas for improvement of any applicants so that they are the most successful with their local school divisions much of that 2016 application process was big and lacked those appropriate supports that you will see here in the near future in this meeting um we built into this so once again the board is so excited to have this work that you all be doing get underway we're looking forward to seeing applications come for the board's review

[00:18:07] and recommendation to move on to local school divisions and i most importantly and on behalf of parents and families across the commonwealth are really looking forward to this opportunity to have additional innovative public school options for students across the commonwealth so thank you so much for the work that you all have before you appreciate it right um president creasy we appreciate your comments we know you came long far apart to be here today which is a testament to your commitment to us and to the students of the commonwealth so thank you very

[00:18:43] much welcome okay um we will now transition to the public comment um the standing committee accepts public comment on all matters related to public charter schools in virginia public comment is an important consideration and valued input to the charter school standing committee the charter school standing committee will accept public comments on agenda items at this section of the agenda. Public comment on non-agenda items will be accepted upon the conclusion of the business

[00:19:21] portion of the meeting. Should there be multiple members of the public seeking to comment on a specific agenda item or non-agenda item, commenters will be recognized in the order which the request was received by the Virginia DOE. For the benefit of the committee and public record, I ask that commenters to please state your name and organization at the beginning of your remarks.

[00:19:50] Comments will be limited to three minutes. Given that time and cost of travel, and again for the benefit of public record, the Charter School Standing Committee welcomes and encourages the public to submit written comments to the committee. As a reminder, written comments may be submitted on the web form available on the Standing Committee's page on the VDOE website. All comments received through the public web form will be provided to the Charter School Standing Committee

[00:20:25] in advance of the meeting. And at this time I would like to ask, is there any person who would like to make a public comment? Yes, would you come up again, state your name and your organization, and excuse me if we interrupt you after three minutes it's not personal thank you thank you my name is dr matthew carter i'm a resident of fluvanna county and i'm here as a concerned

[00:21:01] citizen of fluvanna county who attends school board meetings my comment this morning is focused on the application from fluvanna county uh for the the life school uh charter life prep charter school, excuse me. And I and many other Fluvannans gathered at a Fluvanna County School Board meeting on April the 10th and almost unanimously spoke out against that particular initiative. And we were told falsely, deceptively by school board member Andrew Pullen that that application was not being

[00:21:39] submitted by the Fluvanna School Board. We since found out and sort of proved that that was a false statement refuted the statement from school board member Poland. And I'm just here to express strong disapproval that anywhere in the Commonwealth of Virginia, we should be in the situation where members of a county school board are lying to people's faces about an issue.

[00:22:03] The other thing I wanted to say to give a little bit of my own educational background, because I am an educator, is that while I am a proud product of Richmond Public Schools, K through 12. I've also taught at other types of schools. I went to Maggie Walker, which is a really great magnet school. I was a member of that first graduating class, and I benefited both as student and faculty member from the Virginia Governor's Language Academies. First, I went there as a pupil in 1994, and then I came back first as an RA and then served multiple times

[00:22:41] on the faculty. That is different from the normal public school pipeline. I taught people from home schools and private schools and public schools and charter schools, and it was a great educational experience. So in no way am I opposed to the theory and practice of everything that you and your committee are doing. What I am opposed to is being lied to by my own school board member about charter schools. Thank you. Thank you for your comments. Other public comments, thank you.

[00:23:09] And again, reminder to introduce your name and organization in three minutes. Hi, my name is Kelsey Calder, and I'm also here to speak on the life project of our school from Fluvanna. I am coming not as a representative of an organization, but as a potential public school parent.

[00:23:27] We've got a child in pre-K. We live in Fluvanna. And we've been going to school board meetings because we want to be active participants in a democratically elected school board process. I also want to express that I've been incredibly concerned over the way that the Life Prep Charter School has been allowed to proceed without the agreement of other school board members.

[00:23:55] I'm concerned with the way it came in and sort of a weird back end, and I'm really, really concerned as a parent that it was done largely without acknowledging community sentiment and community will around this. This is not to be anti-charter school. This is to say that I'm not sure that this particular charter school is the right fit for our county. And as a parent, I feel like it is our collective responsibility to make those decisions. It isn't the decision of one school board member to submit these things against the will of the rest of the school board.

[00:24:27] The other thing I'll say is I'm a non-Christian parent and, you know, there aren't a ton of us in in Flavanna County schools. I'm already nervous about the erosion between the separation of church and state within the public schools in Flavanna County. And the notion that we would be taking our already

incredibly limited public school budget and we would be siphoning it off to a charter school that's founded by Christian nationalists is a huge problem.

[00:24:57] I just feel like there is no safe harbor for non-Christian families who want to educate their kids within the public school system. And this takes away from this, again, extremely limited pool of funding that we have to educate a ton of kids. There's one elementary school in Flea Manningham. There's one high school. There's one middle school. We're doing the best we can with very limited resources and siphoning it off even further to advance an agenda that is problematic to me is is is a is a challenge so i just hope you'll consider that as you as you look at this

[00:25:30] particular application great thank you for your comments is there anyone else here for public comments okay again thank you for uh your input uh your views uh and comments are welcome and appreciated for today uh with that i'm going to transition to our um action and discussion items But first, what we'll do today is to welcome our committee members. I could not be more excited to

[00:26:05] be joined by this just tremendous group of individuals on our standing committee. I feel very fortunate to work with our professional colleagues here, but more excited for what it means for Virginia's students and families. As I was reading through the bios and resumes, i uh surmise that there's over a hundred years of experience when we combine us we're not 100 years old um of teaching of founding schools running schools policy advocacy leading funding um national

[00:26:43] local right here in richmond and so with that i'm just incredibly incredibly excited to have this group serve Virginia's children. With that, I'll just give a brief introduction of myself and then I'll turn it over to Mr. Green and we'll have each member introduce themselves. I feel incredibly lucky to be here and just fortunate. I have spent the last 25 years, I believe, working for and with

[00:27:18] some of the smartest, most high impact individual people, organizations across the country. But my educational journey actually started right here in Virginia as a special education teacher.

[00:27:33] I actually went to college here in Williamsburg at William & Mary, and that's where I actually got my first experience, whether it's interning, working with educators, and just seeing the tremendous potential. And I very fondly remember the Virginia SOLs and Virginia leading the way in terms of standards of education in my early, early career as an educator.

[00:27:59] And now 25 years later, I realized how important it was for Virginia to lead the way in setting high expectations for all students and excited to be a member of the Virginia State Board where that work still continues.

[00:28:14] Most recently, I, in the last eight years, founded a public charter school in Washington, D.C., which has been the journey of a lifetime, but also the pleasure to serve students and families. As I was saying with my colleague, it is the hardest work, but it is the most rewarding and impactful work that I have been a part of.

[00:28:40] what i specifically for this committee why i'm excited is that there there is one year where i actually wrote 35 charter applications and so i have tremendous sensitivity of what it means to go through this process to go through a rigorous process to get pushed back to get denied to get approved and so i take the work of this committee very seriously because the honest part is writing the application is the easiest part running the school is the most most difficult challenge and

[00:29:17] so the work that this committee will do in that pre-app in the application and the evaluation and the process is the the most important work that we can do to set school founders up for success and so i'm incredibly excited to be a part of the committee to work with my colleagues who have both local and national experience to really uh set the stage for virginia to continue to lead but for primarily to be able to provide innovative options for our students and for our families

[00:29:50] so with that i will have mr green yeah antoine green uh richmond native um i guess i can start by saying i came to this work probably over 20 years ago uh just because i understood and realized and recognized that there was a real need to address the achievement gap and academic disparity that existed primarily here in the Richmond area along the way I became aware of something called education options and I learned that you can actually go or attend school outside of your

[00:30:27] attended zone that best meets your academic needs. And I became a part of a grassroots movement to start the first elementary charter school in Virginia a little over 15 years ago. It took about two years to open in terms of planning and overcoming some political barriers and hurdles that existed because we were very new. And at the time, we were the fourth approved charter school in the state of Virginia. So in 2010, we opened 225 students. Fast forward 14 years

[00:31:05] later, we have just around 340 students creating opportunities for families and students who want to benefit from the specialized curriculum, the personalized learning that our charter school has provided for as long as we have and i am serving i forgot to mention i was a founder i was the ceo and now i'm the current board chair uh working again to create uh going forward as many education opportunities and options for families in richmond that weekend so that's me thank you very much we're

[00:31:40] very grateful to have you thank you appreciate you absolutely great thank you so much madam chair my name is nina reese and i um i'm a virginian uh my family moved to the united states in 1983 from iran we moved of all places to blacksburg virginia a town with just one high school my daughter is a my father was a college professor and um i went to blacksburg high school and to virginia tech before moving to northern virginia to start working on capitol hill and was exposed to the area of educational freedom and choice at an early age but i got my schooling in charter

[00:32:18] schools about 20 years ago as the head of the office of innovation and improvement at the u.s department of education this is the office that oversees a grant program called the charter schools program which offers seed funding to new charter schools to launch and now to also replicate and expand as a school choice advocate i've always found charter schools one of the best mechanisms to expand rental options within the public sphere with accountability and all the creativity that comes with opening a new school for the past 12 years though i've been running a national organization called the national alliance for public charter schools which advocates

[00:32:56] for the growth of charter schools around the country and because i have lived in virginia for so long i've always been very disappointed with the lack of options in this great state and believe and hope that through this process, we'll be able to add some additional great new schools that will ultimately elevate the quality of public education in this great state. I'm now a consultant, and I have a little bit more time to contribute to this cause, so honored to be part of this committee.

[00:33:26] Thank you, Ms. Reese. Chris Braun, would you introduce yourself? Hi, yes, my name is Chris Braun. I am grateful for the opportunity President Creasy gave me to serve on this committee i think um the last time the committee met was when i was president to the state board of education or shortly

thereafter uh and uh it's it's been a long time since we've looked at this i like antoine i got into this when my my kids were in first grade

[00:34:04] um and discovered i'm from fairfax county and discovered that even in fairfax county there was this sort of two-tiered system in which we had schools that were great for the sons and daughters of doctors and lawyers and not so great for the sons and daughters of housekeepers and janitors. And trying to change that in an institution as large as Fairfax County. I ran for the school board. I was elected there. I was served for eight years. Trying to change that in

[00:34:38] that environment was difficult. We made some successes. We had some failures. One of the things that I discovered was this thing called charter schools. And I think that they suffer in this state for two reasons. One, there are some constitutional impediments that were there, have been there for 100 years, that are now applied to use against the formation of independent public charter schools. And secondly, I think they suffer from the fact that because there are none, nobody knows what they are, and they become anything that anybody wants to declare them to be.

[00:35:17] Despite the fact that 8% of all the public schools in the country are charter schools, they serve almost 4 million students. And the research indicates that particularly for students who are low income, for children of color, they can have a demonstrably effective impact on their lives and their futures.

[00:35:39] That's why I'm into it. I later was appointed to the State Board of Education, chaired this committee for a year or so before my colleagues asked me to be president of the board. And I'm happy for the opportunity to return.

[00:35:56] Thank you so much, Mr. Brunlich. And while Ms. Ebony Lee is not here, I would love to just share a little bit more about Ms. Lee's background and experience. Ms. Lee also has spent over 20 years in education working at the Department of Education.

[00:36:14] She's worked with some several of the largest foundations and their efforts to support education efforts in both traditional public schools as well as charter schools. Specifically, the Bill and Melinda Gates Foundation, she served in the administration, and she currently works at the Charter School Growth Fund, which is particularly important to note about the Charter School Growth Fund is that the growth fund funds and supports the highest quality network of individual and network of charter schools across the country.

[00:36:50] Their process for funding and supporting schools is incredibly rigorous. With their experience, they've been able to support, I think, as Mr. Bronwick mentioned, the high quality growth of charter schools across the country.

[00:37:06] And so really appreciative of Ms. Lee's expertise, her commitment to parental choice, her commitment to parental voice and advocacy and choice, and specifically the support of high quality options for students and families in the state of Virginia.

[00:37:24] So while she's not here, the committee is very appreciative of her joining us and really looks forward to this committee coming together to make the best recommendations on behalf of the students and families of the state of Virginia to our state board of education.

[00:37:43] With that, I would love to transition to have a representative from the Office of the Attorney General, Ms. Deb Love, who's making her way to the podium, who will provide an overview of our

statutory and legal responsibilities.

[00:38:06] With that, I'm turning it over to you, Deb. Thank you. Good morning. Good morning. um i i have a sense of humor so i don't want you bored if you find yourself bored or drifting off tell me and i'll do my best to to bring it back in because this is the kind of stuff that you got to do right um so that's part that we talk what's that this is the best part this is the best part this is the best part this part you're going to take away yeah so just a little bit about myself. My name is Deb Love. I am a senior assistant attorney general in the AG's

[00:38:42] office. I'm the head of the education section, not the one that has colleges and universities. That's the poor lot of a colleague of time, but all the agencies and institutions that are under the secretary of eds or higher ed centers, the libraries, Virginia, Department of Education is our behemoth client, as it were. And that's the word I'll use in public. See, that was that wicked sense of humor.

[00:39:07] I am in my, I'm closing up my 39th year with the AG's office, so I have to look everything up because it's changed at least seven times since I first learned it. One of the things I want to talk to you about today, my goal here is to sensitize you to some of these issues so you'll know when to pick up the phone.

[00:39:26] If you contact Sophia, to contact Emily or to reach out to me if you're unsure about whether a force of action that you're contemplating is appropriate. So we're going to spend a little time talking about the Virginia Freedom of Information Act. There is a much longer version of this presentation.

[00:39:43] I'm sparing you that. But I think it's safe to say that the Freedom of Information Act or FOIA is one of the most important statutes that public bodies can adhere to to enhance their reputation and transparency in the community, right?

[00:40:04] The idea is the business of the people should be done in public. That's why we have a public meeting. That's a requirement of the law. So, you know, there's this idea some folks have that there's the real business happening in the room where it happens, right, in the quiet places where nobody can see.

[00:40:24] but that's but FOIA stands for the opposite proposition right the business of the people should be done in public and the public has two rights uh in FOIA grounded in FOIA one is the right to attend public meetings we're going to talk about meetings and also the public has the right of access to records we're also going to touch on that a little bit um I can get super down in the weeds if I'm call me back up to the surface if I need to like I said my goal here is that we have a certain understanding and sensitivity to these issues.

[00:41:01] So FOIA applies to public, what's called public bodies. It's a defined term in the law. And the public body, of course, is the Board of Education. But also the definition of public bodies includes committees that are committed by the board. So this committee is a public body.

[00:41:16] And so you have to comply with FOIA the same way the Board of Education does every other state agency. So what's a meeting, right? Well, meeting is a function of two things. It's how many people are doing it, and what is it that they're doing. So this is a committee that has a quorum, has a membership of five people.

[00:41:42] As many of, as few as three of you together, not only constitute quorum, but under FOIA, that's a meeting. If three of you get together, that's a meeting, but not any getting together, right? you're going to

be getting together for the purpose of discussing or transacting your business that is what makes it a meeting now i suppose you could have um you know the chair could appoint a subcommittee consisting of maybe two members um well then anytime those two that subcommittee is also a public body so when those that subcommittee those two members talk to each

[00:42:20] other that's a meeting of that subcommittee so don't do that or we'll talk about need to talk about the reasons that you might find that sort of approach helpful but again it's as few as three of you who are talking together so we can have our conference calls on the phone right you can get three people together but that makes it a meeting you're going to be talking about charter schools and with the idea of having a meeting as i said the public has the right to attend your meetings well that means certain other things have to happen there has to be public notice of the meeting and there's a particular manner in which that's posted you don't need to worry about

[00:42:57] that we have we have staff at the department who manage that but what's important to know is there has to be at least three working days notice of the meeting so if something happens and you want to have a meeting in two days unless it's an emergency you can't need the public needs to have three working days notice the public has the right to attend your meetings the press has the right to attend your meeting they can record your meetings now they can't do in that in such a way that interferes with your ability to conduct your business um so you know if something gets out of hand we can we'll we'll take that up and manage but but that's almost never the case in my experience

[00:43:37] your meetings have to be conducted in open session we do have the ability to go into closed session i'm going to touch on that in a minute um and you have to have minutes and i don't know it's not my job somebody's taking minutes right somebody's gonna prepare them in the price okay so you don't have to worry about that but you'll be asked to vote on them at the next meeting so your meetings have to have there's FOIA contemplates a couple of different arrangements now that you know when I started in 1985 right there was no there was no virtual nothing right every meeting was in one

[00:44:13] place nothing was broadcast it might be recorded we didn't have computers in our office don't get me started but the classic old school meeting right is everybody's physically present in one location like we have today. Classic meeting. The press, the public has the right to attend in that setting. Some boards you may have heard about or know of can have 100% virtual meetings where everybody is participating on Zoom or Teams or whatever the platform is. This body is not

[00:44:48] eligible to have a 100% virtual meeting. And the reason for that, you can blame the board. FOIA says that all public bodies can have 100% virtual meetings unless it's a body that has the authority to issue or revoke a license.

[00:45:08] And, of course, the Board of Education has that duty with teacher licenses. And because you are a creation of the Board of Education, even though you're not doing licensing, right, it doesn't really make sense, I hope to you, it doesn't to me at least, that a committee of the board could exercise a meeting option that the board itself cannot have.

[00:45:28] So that's that's my view of the law. So that's why we're going to only be able to have meetings that are well, that's why we can't have a 100 percent virtual meeting. Now, we can do a little bit of a blend. So long as you have a quorum that is three of you physically present in one location.

[00:45:47] Right. Other members of the committee can participate remotely under certain circumstances. Right. You can participate remotely if you have a temporary or permanent medical condition or disability. prevents your attendance you can attend remotely if you have to care for a family member with a medical condition and that's what's preventing your attendance you can attend remotely if you live more than 60 miles away from the meeting location all of those options you can do as many

[00:46:22] times as you want as many times as you need to there's a fourth option but you can only exercise that option from time to time and that is you can attend remotely for a personal reason so you might be on vacation or you might be on a business trip right you can still participate remotely from wherever that is the there's a couple things that go along with that one is it's it's limited you can only do that twice a year or uh 25 of your meetings whichever is more but we'll be tracking that for you so you can't do it as maybe as often as your schedule might uh otherwise hope you could

[00:47:00] do um the um other thing is that uh i lost my train of thought you can attend for a personal matter oh and the you have to specify the nature of the personal matter i mean we don't have to get but so personal but if you're traveling on business that's enough to say i'm traveling i'm in california on business and so i'm attending this weekly um all that has to go in one minute we'll track that for you but just wanted you to be aware that that your reason has to be put to record recorded in the minutes but again that remote participation option is just to allow

[00:47:39] up to two members of this body to participate remotely while we still have a quorum physically present in one location it's all that clear okay another thing we have to worry about that we didn't have to worry about in 1985 is email and text messages um you know now we have the ability to have group texts or group emails you can see how an exchange among members can begin to happen in real time and it actually kind of looks like a conversation um don't do that um the virginia

[00:48:17] supreme court has anticipated that possibility and says if it functions like a meeting we're going to treat it like a meeting and of course the public won't have notice of it they won't have the opportunity to witness what goes on so so the rule of thumb is you can talk to one other person, right? You can have a one-on-one phone call with each other. You could have a series of one-on-one phone calls, right? That's, that is permitted under FOIA. What you can't do is pull everybody together in a group text or an email and get all that information. My suggestion to you is don't, don't start on that path. It's easy to kind of forget where you are and start adding

[00:48:56] more things. You know, work with Sophia to, you know, get information shared out there. You may have an article um that you've come across you think would be good for everybody else to see don't send it to everybody if you're going to do that bcc everybody else on the committee that way there's no reply all that begins to start to look like a conversation why are you smiling i know right this is good information right right you can share that with staff you know they're happy to to send that along but um so the big takeaway on this is no group texts or emails don't do

[00:49:33] reply all. Now, I said that the meetings have to take place in the open and public like this one, like we're doing right now, but you do have the ability to go into closed session. And there's probably 40 reasons in the code for doing that. The one that seems most likely to come up for this body would be for consultation with counsel. This is a presentation, actually, we could have gone into closed session to do. There's nothing I'm saying here that's not just black letter law. I'm not giving you legal advice in the sense that you're wondering about a course of action. I'm

[00:50:07] telling you about the risks and that sort of thing. So I'm comfortable having that. If you have a delicate question, I would prefer not to have to answer. I would prefer not to give legal advice in public, right? You're welcome to reach out to me outside of this meeting. I'll be here for the duration of this morning. You know, we can work with staff. We can figure out that answers. But, You know, I have with the board, as your chair knows, there'll be times that I'll be asked something and I'll say, you know, I think we need to go into closed session for that.

[00:50:41] And then we can have a candid discussion, right? You don't take minutes about anything that happens in closed session. The only other thing really that you need to know about closed session is there's a whole process for that. So there has to be a motion and a second to go into closed session. That's not unexpected.

[00:50:57] But the motion has to contain certain things. We have to explain to the public why we're doing this. And then once we're in closed session, you have to stay on topic. So you're not going to go in, your FOIA doesn't permit you to go in for legal advice and then start talking about the merits of a particular application and how you plan to vote, right?

[00:51:17] And when we come out of closed session, there's a certification. I did not write this. The General Assembly wrote this. It's not my fault. But it's a recitation that we went in for the reason, we stayed on topic, we behaved ourselves and each member is going to have to certify that to be true. I think this stems from there's all kinds of FOIA litigation, particularly at the local government level. People are very suspicious of their boards of supervisors, I guess, or city councils. You know, there's this idea that, you know, once you're in closed session, who knows what's going on in there? Well, we're

[00:51:54] going to get each member on the record saying, no, we complied with the law. And that's all preach on that subject so when we're in closed sessions stay on stay on subject and and staff and i will guide you through the process for getting in and out of on closed session that's everything i want to cover on meetings do you have any questions about that and if i don't feel comfortable answering believe me i'll tell you does that include questions i might have on emails and retention we're going to talk about records okay yes um so yes so that's my perfect pivot

[00:52:33] right we have um not only does the public have the right of access to the records and we have to FOIA takes a very broad view of what a record is it's everything that's written down um or recorded or in a database all that kind of stuff any tangible form that something is is reduced to is a record for FOIA purposes and the public has the right and press have the right of access to all those records and they make a re they can make a request to um to see them a couple

[00:53:08] of things let's so let's a couple things you need to know about this request um there's no requirement that a member of the public say pursuant to the virginia freedom of information act section blah blah blah blah i hereby request this thing um but if somebody were to come up to the store and say hey i i saw your meeting you were talking about this document i'd like a copy of that document that's a foreign request to you you're being approached in your official capacities the member of the committee a member of the public has asked you ask you for a particular record so now that

[00:53:43] triggers that that ask triggers a five working day turnaround to produce the material good news you don't have to worry about complying with that your job if that happens is to get in touch with sophia and say i've been asked this right now you should get the contact information so we can actually turn over the report or whatever the thing is but your job is to let us know that this request has been made chances

are the record that that has been asked for is one that we are going to be obliged to turn over and that's that's fine that's great um there are any number there's a whole slew

[00:54:19] of exceptions um where we have the right to withhold um attorney client privilege communications for example should be withheld and can be under under FOIA um so it's letters it's contacts i mean strictly speaking it's your text messages if they're related to the work of this board don't text message i don't want to have to look at your phone and figure out what we have to produce um it doesn't matter if it's on your personal do you all have personal email addresses or edu uh doe email addresses personal personal all right so all that um you know the fact that's on your laptop or in

[00:54:58] your gmail account or your work account doesn't matter it's not where it is it's it's what it has to do with it has to do the work with if it has to do with the work of this committee it's a public record my suggestion to you is establish a separate folder um you could have a separate email address if you want I'll leave that up to you but I would just put everything in one folder you know you can copy um and just keep that and if a request comes chances are anything that you all have received DOE already has maybe it sent it out right so it's going to be able to respond

[00:55:35] but there may be situations where they want all the communications between the chair members of the committee on a particular application you know and we're going to have to figure out all right what what were those communications we won't bother you about that unless we need to but we may need to confirm with you that we have everything that is potentially responsive so we can make decisions about what needs to be turned over so you have to hang on to this stuff right we also have a records retention law that says records that are generated in the course of business of the commonwealth have to be held for a certain period of time for your purposes it's

[00:56:09] it's for as long as you're on this committee just hang on to that um don't delete things um now if you if it's something that um sophia for example has sent out to everybody so we've got the copy you're welcome to release that just don't don't delete anything where you are the sole holder of that right does that make sense did i address what was ever on your mind yeah yeah i mean nothing focuses the mind more than getting a foyer request uh three years after you left the board for documents that you mean you you had there right and you know i advise a lot of search committees

[00:56:47] for like advised search committees for university presidents or agency heads and what we tell people at the end of their service is just turn all your stuff over to the staff they'll sort it out them They'll figure out how long it needs to be held for. It'll be disposed of in accordance with the schedule that the librarian of Virginia actually establishes for all state agencies. Some things are for three years, some are for four, some are for 10, some are forever, if it's historic in nature. But you don't have to worry your pretty little heads about that, as they say.

[00:57:18] You know, just, and again, if you have any questions on this, I am more than happy to take your call or exchange emails with you to sort this out. Just because lawyers sometimes have to be scary i want to let you know the penalties for non-compliance with foia i mean first of all there's there's a lack of public trust in the process right word gets out that the meeting got out of hand and things were talked about privately that shouldn't have been right where's where's the confidence in what in the work that you're doing right so there's that's

[00:57:53] probably the greatest loss and the hardest to measure it's also the hardest maybe to to recover from. But there's also, people can bring lawsuits over FOIA matters. This meeting was held that there was

no public or inadequate public notice. It can result in the invalidation of actions.

[00:58:14] So you'd hate to go through all of that only to find out that you've got to go back and revisit this charter school application because there was somehow a flaw in a defect in the notice of the meeting. And there actually can be civil penalties of up to $5,000. And that actually can be against an individual. So got your attention now. So that's all I had to say on FOIA, unless there are any

[00:58:47] questions that you'd like to take up now. Okay, we covered records retention. There's, am I correct that you all were not asked, I know that's not true for you as chair, because you remember the board. Were you asked to fill out statements of economic interest? No. Okay, that's fine. You're not required to. So that's fine. But we do have a Conflict of Interest Act that does require

[00:59:23] certain conduct and behavior of you, even if you don't have to fill that out. Conflicts Act applies to all state employees and officers and officials and whatnot, whether or not they have to complete that on that online form that gets posted for everybody to see um there's conflict of interest is the thing i least like to talk about um in any detail because it's the law is full of tedious tedious not even a lawyer can love definitions that are painful um to parse out and difficult

[01:00:00] so let's just keep it to keep it at a high level if you find yourself in a situation where you have a personal connection to or a financial connection with anything that's coming before this body call me and we'll work through what needs to be done it may be a situation where you have to recuse yourself in some cases you're allowed to participate in the discussion or the decision but you have to disclose your interest so um if you were on the um i can't even think what example if you were somehow connected to an applicant you were on a board that was you know supporting an application

[01:00:40] you know, we'd have to talk about whether or not it was appropriate or lawful for you to participate in that discussion. Maybe one that you're just going to have to sit down. But we'll work through that together, which is to say, call me before the meeting, right? Because this stuff is not easy. And I'm disinclined to tell you no, right? I mean, as a defense lawyer, I'm kind of cautious that way. I want you to stay as far back from the line as you can. But you want to be able to do your job, and I want you to be able to do your job. So before I say no to you, I'm going to run that up my chain, make sure that my advice is, in fact, the correct advice to give. There's

[01:01:17] other mechanisms that we can use. There's a couple of ways you can get a written advisory opinion about something, but we can talk about that, you know, offline. That's all I was going to say on FOIA. I have one other thing I wanted to touch on briefly, but before I pivot, is there anything?

[01:01:37] All right. That's the most important thing, right? What is it you're here to do? What's your job? so we've just spent a lot of staffers in these rooms spent a long time talking about lab schools and but this is a very different kind of process right whereas with the college partnership laboratory schools this actually resulted in a contract between the board of education and the lab school with charter schools the contract that's going to actually result in the creation

[01:02:11] establishment of the charter school is with the local school division the board of education has a very different role here and it's much more constrained most of what you're about most of what the board is about is contained in a single statute that says that the board's job is to review applications for feasibility curriculum financial soundness and such other criteria as the board may prescribe. Now we have a process, we have an application, we have a rubric

[01:02:49] already in existence from a number of years ago, but I know that on your agenda today you're going to revisit some of that to see whether we have learned things in the last eight or ten years that might warrant some things. You are a standing committee of the board of educations up to the board to tell you what your role is. You'll see from the process document that you'll be discussing there's a role for you there so that's your charge um you will um so the board's going to set out for you um presumably this this all these materials are going to come before the

[01:03:25] board next week so we'll confirm we'll know for sure what your job is but I suspect it's going to closely resemble the documents that you have in draft for you today so that's your job you don't get to you don't get to the board doesn't get to board of education doesn't get to establish your charter school you know approve charter schools you're just saying does it meet all the criteria and if it doesn't we can go back to the applicant you know per the process right if um there will be a report that needs to come out from the board of education well yeah the board of education has

[01:04:00] to have a report on applications that becomes part of the application when it goes to the local school board so i suspect that part of your role is to um develop the fodder for that the draft of that for the Board of Education consideration. I don't know exactly what process we're going to engage in to do that. I think I would recommend that when you get to applications coming before you to have a motion, you're going to have a robust discussion. Somebody's going to be taking notes about your observations. This is strong in the application. This is enough, but it could be pumped up in whatever it is you're going to say, right? Somebody's going to be capturing that.

[01:04:38] My suggestion will be that you then move to, we'll figure out the precise language, recommend to the Board of Education that it find this application is complete and sufficient under the terms of the law, and that you authorize your chair to finalize the draft report that you've been submitting to the board.

[01:05:00] But we'll have that language. Since there's no applications today, we didn't have to do it today, and I'm in survival mode right now. I'm only doing the things I've got to do right now. Are there any questions about that? I want to look at the staff.

[01:05:16] Is there anything that I needed to touch on that I didn't? I am more than happy, as I said, more than happy to take your calls or your emails. We can get my contact information out to you so that you can reach out to me whenever you'd like.

[01:05:35] I know this is important work. It's important to the board and to the governor. So happy to take your call at any time. All right. Thank you. Questions for Deb? Wonderful. Thank you, Deb. I'll have a better job next time. you were okay today they are okay you're okay awesome ask the committee do you all need a brief restroom break maybe two four minutes or okay to plow on okay great so we are ready to plow on

[01:06:07] all right uh we are going to continue um and thank you uh deb for the presentation um with that we are going to transition to the charter school standing committee role and responsibilities i am also incredibly excited to introduce miss sophia mcdaniel who is going to serve as currently serves as a senior innovation policy analyst in the virginia department of education miss mcdaniel is a proud virginia k-12 graduate after simultaneously completing her high school

[01:06:46] and associate's degree at northern virginia community college miss mcdaniel went on to receive her bachelor's degree from george mason university and her juris doctorate from ohio northern

university where she graduated cum laude worked very very hard thank you after law school she did iep in for in 504 work in significant domestic violence prevention work furthermore she was asked to be a thought leader in the state of florida's faith and community-based initiative to prevent domestic violence after spending time in the private and legal sector

[01:07:25] miss mcdaniel joined the virginia department of ed to lead on policy work and is passionate about creating innovative opportunities for children across the common world we are incredibly lucky to have her as our lead for public charter schools with the department miss mcdaniel please we're ready for your presentation um agenda item c thank you so much for that lovely introduction madam chair ashton and thank you so much members of our charter school standing committee once again i am sophia mcdaniel and i will be leading you through this process so i want to go over our

[01:08:02] rules and responsibilities that we're going to take into consideration as we go through you'll see it also in your items in front of you and what better way to set the stage than with the statute. Let's go to the Code of Virginia. The Code of Virginia defined a public charter school as a public non-religious or non-home-based alternative school located within a public school division. The local school division is the ultimate authorizer of a charter school in Virginia. I highlight this nuance for you because it's incredibly important as you all are national charter school experts, so I want to make sure that we have Virginia at the forefront of our minds.

[01:08:40] And moving on with the Code of Virginia, the board is required to review, comment, and make a determination as to whether the application satisfies the criteria developed by the board. I'm simply flagging this as it will be more relevant to Agenda Item D, where we will be intentionally going through the proposed evaluation metric rubric, the proposed charter school application process, and the proposed charter school application itself.

[01:09:08] But most important to note, the board here is heavily relying on your knowledge and expertise as you make this determination when you look through these applications to see if they truly satisfy the criteria developed by the board. And in particular, if you have any questions on the statute, once again, we're incredibly lucky today to have Board of Education President Grace Creasy and Attorney Deb Love in the Office of the Attorney General, if you have any particulars.

[01:09:34] And moving on, this is not going to be applicable to y'all, but I just want to point it out because once again, let's look to the statute. Charter school applications initiated by one or more local school boards are not subject to review by the Board of Education. So those applications would not come in front of you, and they would not come in front of the Board of Education.

[01:09:57] So let's really hit home on this point that the board is required to render a decision on whether the public charter school application satisfies its criteria. In your committee material items for item D, you will have the proposed criteria once again in that proposed evaluation metric rubric, the proposed application process, and the application itself.

[01:10:22] Why is this important? It's important that you adhere to the documents that we have moving forward as you'll be reviewing each application and providing comments. You're all here today because of your wealth of knowledge and experience in public charter schools. So you're serving as a technical review panel to examine whether or not these applications satisfy the board criteria.

[01:10:49] And so what happens when we come to a charter school committee meeting? You're going to have that time to meet with the applicant about the comments that you have on their application. The applicant is going to present on their application, but it also gives you time to have that substantive lively discussion with the applicant, ask questions, and give room for any areas where you think that there are strengths and or suggestions. You're going to discuss that application and once again hit that final determination on whether the application

[01:11:20] satisfies the public charter school criteria. And so all applicants are going to receive written comments on those strengths and suggestions once again. And if they're identified as not satisfying the board criteria, they would be coming back before you. And so that's why your comments are incredibly important. And most important, once again, because of your wealth of experience and knowledge and your role serving as a technical expert on this committee, your feedback is not only going to be incredibly pertinent for the applicant but also for the

[01:11:56] board of education and then for the local school board who would be that final authorizer and then that is the end of my presentation i'm going to turn it back on over to you madam chair great um president creasy do you want to ask offer any additional comments no okay wonderful any questions for sophia about the purpose of the committee okay then we'll turn it back

[01:12:34] over to you miss mcdaniel for a discussion on the recommendation for an enhanced around the evaluation process for the charter school application um well i have a question sorry how was this done before so as far as the committee or the materials just the applications that were sent to the departments who reviewed them yes so before what happened and and we're going to get more in detail when we get to that application process piece and item d um we'll get

[01:13:11] more into that so you'll probably hit it when we get to okay okay great um well i would just want to echo um as we heard from uh president creasy uh this is a tremendous opportunity for us to really enhance and build on the work that was previously outlined as we heard it's been over eight years since the board of education has reviewed the lab has reviewed and approved the last charter school and that also includes reviewing the application reviewing the process as well as the evaluation

[01:13:49] rubric so as a member of the board member of this committee as well as the board of education i am really grateful for the staff's work coming into this to really look over what has worked and where there are opportunities to improve and really looking at the best practices that exist here in virginia but also across the country that while looking at these best practices we're going to be able to look at the materials look at the evaluation process look at the application process and as ms mcdaniel mentioned really making sure that the materials

[01:14:29] reflect and can go back to the local governing boards it really is an opportunity and i wrote this down several times is to make sure that this committee is really focused on how these applications satisfy the criteria as outlined and so that's the work that we are going to be doing today. Again, feel incredibly grateful for the national local expertise that we have here, and really looking forward to us as providing just thoughtful feedback because the team has worked really, really hard to think about, again, the evaluation rubric, the application,

[01:15:05] and the application process. Our focus today is to really enhance, to provide feedback and recommendations on the staff's work as we today will then eventually make a recommendation to the

board of education around the evaluation rubric the application and the application process president crazy anything else to add yeah um just i just did want to add just um kind of briefly that

[01:15:38] it in response to the question about the process previously i think what we wanted to do is make some really intentional moves here to ensure that very highest quality charter schools are coming out of this committee's review process and so that is why we're going to look at this our new evaluation criteria application and everything that's just much more robust and enhanced than the previous process was you know i think we noted in the conversation earlier that

[01:16:13] there have been some times that this evaluation process that you all will be reviewing may have been helpful to ensuring greater success in years past. And so I do believe that this enhanced process application evaluation criteria is absolutely going to be helpful to the longevity and sustainability of future public charter schools. So I'm going to turn it over to Ms.

[01:16:52] daniel and direct us um to our materials where we should follow along awesome so i thought it would be best to begin with the evaluation rubric as this sets the stage for the rest of our conversation today i ask that you turn to attachment seven through nine in your binder it's going to be that last one there you'll see that it is set up with prior evaluation metrics staff recommendation and then the proposed evaluation metric updates to the public school the public charter school

[01:17:26] evaluation regret were needed to better align the proposed updates to the public charter school application process and the application itself this proposed evaluation is far more fleshed out and run parallel to the proposed charter school occupation and more succinctly outlines the requirements in lokota virginia and shows how in the 2016 border fruit criteria how they have also been addressed it is important to note as i reviewed an agenda item c that the standing

[01:18:02] committee needs to evaluate whether the application satisfies all of the board's criteria in the 2016 in each public charter school application the standing committee made 12 votes on each of the roman numeral board criteria and then made a 13th vote on whether the overall application satisfied the board criteria to better align with the code of virginia requiring the board to evaluate feasibility curriculum financial soundness and other board criteria you will see in the proposed

[01:18:37] evaluation measure all existing 2016 board criteria present in the 33 public charter school application requirements as required by vote are captured clearly for the reviewer and the applicants with further transparency and clarity on documentation needed spaces for standing committee member comments added the enhanced document aims to be a more useful tool for members as they evaluate through the four board criteria votes and the overall application review

[01:19:11] as to whether the application itself satisfies the board's criteria i'm going to go ahead and turn it over to you madame chair great um i also just want to note for the record that all of these materials are posted on the vdo website and so the public does have access again i really appreciate the staff's summary um i want to open it up for the committee members uh for comment but i just do want to confirm um as the i think as the law says we are required to look at the financial the

[01:19:50] feasibility and the curriculum and and this this um evaluation rubric does do that and uh also allows us to uphold our requirement on all 12 of those items but we are consolidating like in terms of the actual action do i have that correct so on the on the old evaluation metric rubric you would see that there

was those 12 votes and then a 13th vote what this does is it's far more transparent and follows not only those requirements but takes the 33 elements as

[01:20:27] outlined in code of virginia section 22.1-212.8 there are 33 requirements so it puts it into these really nice succinct buckets and gives you space to add strengths and suggestions for the applicant and turns that 13 votes into four and then a fifth and final vote on the application itself great thank you members of the committee do you have follow-up questions related to what has been presented by miss mcdaniel

[01:21:04] not at this time okay let's make down well done shall we see um so if there aren't any either recommendation or modifications we will move on to the application process great thank you madam chair we will now turn to the charter school application process i ask that you turn to the captains 133 and your funder will be the first section we have there the proposed revisions to the public charter school application process it absolutely changes in technology we had references

[01:21:41] to fax machines before better align and reflect what is outlined in the code of virginia account for an additional eight years of lessons learned when it comes to reviewing commenting and supporting new charter school applicants as well as using committees of technical experts just like yourself with charter school expertise and reflect best practices from state authorized operating high quality charter school portfolios and what they look for in that evaluation process great members

[01:22:15] of the committee are there any questions about the application mcdaniel there are no questions about no questions about the application we can move on to the application process so now we will be turning to the charter school application i ask that you determine the catchment 4 through 6 in your finders regarding the charter school application the proposed revisions to the public charter school application reflect changes in modernization of technology creates strong

[01:22:50] alignment to the code of virginia and reflect best practices from state authorizers operating high quality charter school portfolios and what they look for in public charter school applications and once again evaluate them turn it over to you ma'am chair members of the community do you have any questions let me ask a couple of questions um my recollection is that an application would

[01:23:22] be received in the past by vdoe and vdoe staff would review it and make observations to the charter school committee as to the adequacy of what was being proposed is that still plan to be the process thank you for your question every moment what is now the process or the post application process so we are now making sure that video we staff we are looking for administrative completeness in an application and making sure that the 33 elements is outlined in the code of

[01:23:59] virginia are hit there will not be the sme group that you might remember from that little process We really wanted to make sure that we have the technical review panel reviewing these applications as you all have the wealth and knowledge and experience involved to our schools.

[01:24:16] Okay. Eons ago, the staff of a former mayor of Richmond met with a charter management organization, little known, called KIPP Academy, and was trying to entice them to come to Richmond.

[01:24:39] And Kip basically said, we come there under your law. They're not our employees. They do not report to us. They do not respond to us. We cannot pay them differently from the local school system.

[01:24:57] We're not interested. I don't think that part of the law has changed. So as this committee reviews these applications for best practices, I think having the people operating a charter school, being responsible for the employees would, I think, be considered best practices. I could be wrong. So as we're reviewing these applications in the future for best practices, how do we deal with situations where best practice is totally outside Virginia

[01:25:32] law? Can you clarify your question there? So I think that that's why we have our AG staff here as a part of this process as well to be able to make sure that even though we know what these larger more national best practices are we do have to operate within the bounds of virginia law and we do we'll be driving that train by uh with holding hands of the attorney general's office to ensure that that is mainstreamed in this process as well so in a situation like that

[01:26:10] would it be flagged to this committee before we see in circumstances where well this is proposed here but you can't do it because of this absolutely yes and and we we do have the opportunity with department staff to be in communication with the applicant applicants themselves to say hey you know we see this application comes to us with x y or z we want to make sure you're clear on state statute and what is required of the process in Virginia most of the time I haven't seen any

[01:26:46] applications that have come across us at this point that actually would lend us to a situation like that just yet but that doesn't mean it's not going to happen so I've seen them wait Mr. Bronick any follow-ups no okay any follow-up questions Ms. Reese to the extent people had applied this year under the old application they've already been notified that on next steps or do they have to go

[01:27:16] back and fill this application now so they were notified that there are proposed uh criteria that was coming before you all and so they would be submitting their application now for the proposed criteria if it is improved um mcdaniel any anything else you want to provide i think we've gone through evaluation application application process any any additional updates do you want to share

[01:27:52] with the committee nothing more from me thank you manager okay um committee we um now is the time for us to make a motion so if there are no other questions for the staff i would move that the standing committee on charter schools recommend to the board of education the proposed application criteria as contained in the 2024 public charter school evaluation rubric the proposed 2024 charter

[01:28:26] school application process and the proposed charter school application for use pursuant to 22.1-212.9 of the Code of Virginia. The motion has been made. Is there a second? Second.

[01:28:46] All in favor, signify by saying hi. Motion has been carried. Thank you so much. And again, want to thank Ms. McDaniel and the staff and team for your tremendous hard work in reviewing and updating and enhancing the application process. We really do look forward to working with you as we engage in this process um with that let's see i don't think there's any need for nothing no uh execs i wanted to practice executive session but we don't have anything back

[01:29:20] so with that um i just want to remind the as a reminder these materials will go before the board of education's consideration next week uh incredibly grateful for the expertise of the standing committee to inform our public charter school process for 2024 and beyond we will follow up with the standing committee pursuant to any board of education action by the end of business next friday after the board meets uh and the last um just update for the board for the public is

[01:29:57] that we did have two written public comments that were non-agenda items that we we have received but otherwise i think i will take a motion to adjourn so moved second okay all in favor for adjourning aye all right okay meeting is over thank you madam chair yes



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